



POLICE DEPARTMENT

March 12, 2018

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In the Matter of the Charges and Specifications	:	Case Nos.
- against -	:	2016-15495
Police Officer Nydia Veras	:	2017-17116
Tax Registry No. 940834	:	
Manhattan Court Section	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Javier Seymore, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent: Michael Martinez, Esq.
Worth, Longworth & London, LLP
111 John St., Ste. 640
New York, NY 10038

To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

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CHARGES AND SPECIFICATIONS**Disciplinary Case No. 2016-15495**

1. Said Police Officer Nydia Veras, on or about March 22, 2016, while off-duty and assigned to the 50th Precinct, in Clarkstown, New York, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer wrongfully used Police Officer [REDACTED] personal vehicle without his permission or authority.
P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
2. Said Police Officer Nydia Veras, on or about March 22, 2016, while off-duty and assigned to the 50th Precinct, in Clarkstown, New York, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer wrongfully took Police Officer [REDACTED] cell phone, house keys, and vehicle keys without his permission or authority.
P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
3. Said Police Officer Nydia Veras, on or about March 22, 2016, while off-duty and assigned to the 50th Precinct, in Clarkstown, New York, did fail and neglect to properly safeguard her on-duty firearm, to wit: said Police Officer left her on-duty firearm inside a nightstand in Police Officer [REDACTED] residence.
P.G. 204-08, Page 2, Paragraph 7 – FIREARMS REGULATIONS
4. Said Police Officer Nydia Veras, on or about March 23, 2016, while off-duty and assigned to the 50th Precinct, wrongly posted disparaging, inflammatory, or otherwise inappropriate statements on her personal Facebook social media page. (*As amended*)
P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

Disciplinary Case No. 2017-17116

1. Said Police Officer Nydia Veras, on or about February 20, 2017, while assigned to Housing Borough Bronx Viper, did fail and neglect to appear for her assigned tour without permission and authority.
P.G. 205-18, Pages 1 & 2 – ABSENT WITHOUT LEAVE
2. Said Police Officer Nydia Veras, on or about June 23, 2017, while assigned to Housing Borough Bronx Viper, did wrongfully engage in conduct prejudicial to the good order, efficiency, or discipline of the Department in that on one (1) date, said Police Officer Nydia Veras failed to comply with a lawful order to appear at an official Department interview being held pursuant to Patrol Guide Procedure 206-13. (*As amended*) (*Dismissed*)
P.G. 203-03, Page 1, Paragraph 2 – COMPLIANCE WITH ORDERS
P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT

SUMMARY OF FINDINGS AND RECOMMENDED PENALTY

The above-named member of the Department appeared before me on February 12 and 15, 2018. On Disciplinary Case No. 2016-15495, Respondent, through her counsel, entered a plea of Not Guilty to Specification 4, and a plea of Guilty to Specifications 1, 2 and 3. On Disciplinary Case No. 2017-17116, Respondent, through her counsel, entered a plea of Guilty to Specification 1, while Specification 2 was dismissed. Respondent testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

After reviewing the evidence presented at the hearing, and assessing the credibility of the witness, the Court finds Respondent Not Guilty of Specification 4 under Case No. 2016-15495, which charged Respondent with making an inappropriate Facebook post. Respondent having pleaded Guilty to the remaining three counts under Case No. 2016-15495, and to the single count under Case No. 2017-17116, the Court finds Respondent Guilty of those charges. The Court recommends that Respondent forfeit twenty (20) suspension days previously served, with the remaining twenty-two (22) suspension days restored to Respondent.

ANALYSIS

Respondent testified that at the time of the March 22, 2016 incident she was seven-and-one-half months pregnant. The father of her child was Police Officer [REDACTED], with whom Respondent had been in a relationship for just over a year. The two were engaged to be married, though a month earlier Respondent had discovered that Officer [REDACTED] was being unfaithful to her with a woman from Texas, which was a "crushing" blow to Respondent. Officer [REDACTED] assured

her that his relationship with the Texas woman was over, but Respondent remained suspicious. (Tr. 18-22)

Despite the strain in their relationship, Respondent and Officer [REDACTED] were still hoping to work things out between them. Respondent testified that Officer [REDACTED] continued to welcome her in his home, [REDACTED]. Respondent had her own apartment in [REDACTED] as well. On March 22, Respondent was at Officer [REDACTED]'s home resting with him. While Officer [REDACTED] was napping, Respondent unlocked his cell phone and discovered that he was still involved in a relationship with the woman from Texas; Respondent saw that Officer [REDACTED] had a plan to go see the woman in Texas in two days. While looking through Officer [REDACTED]'s phone, Respondent saw that he also was involved with other women. (Tr. 21-22)

Upon making these discoveries, Respondent began hyperventilating, and felt overwhelmed by stress. She also felt hungry, and decided to go out to get some food. Respondent testified that before leaving, she left her firearm in Officer [REDACTED]'s nightstand. Officer [REDACTED] had a secure safe on the nightstand, but Respondent admitted that she did not put her gun inside the safe that day. She explained that the only person who lived there was Officer [REDACTED], so she believed the weapon was safe in the nightstand. (Tr. 23, 27-28, 40)

Respondent testified that although she had driven her own car to Officer [REDACTED]'s home, his car was parked closer to the entrance so she decided to take his vehicle to get food. She acknowledged that she didn't ask his permission, but explained they often used each other's car. She also noted that she had the keys to his vehicle on her own key ring. Respondent drove off between 2030 and 2100 hours. She knew Officer [REDACTED] needed his car to leave for work by about 2230 hours, and insisted she fully intended to return with the car before then, which she did. Respondent also admitted that she took Officer [REDACTED]'s cell phone with her without his permission when she went out. (Tr. 23-24, 26, 28, 38-39)

While she was out with his car, Officer [REDACTED] used his house phone to call Respondent on his cell phone. Respondent testified that Officer [REDACTED] was upset, and that he hung up on her. Soon after, Officer [REDACTED] mother called Respondent to discuss what was going on between her son and Respondent. The woman from Texas also called on Officer [REDACTED] s phone, and Respondent spoke with her as well. Respondent testified that she was out for a little more than one hour before she returned the car to Officer [REDACTED]. (Tr. 25-26, 39)

The next day, Respondent was concerned about a text message she received from Officer [REDACTED], and so she obtained an order of protection against him. When officers from [REDACTED] served the order, Officer [REDACTED] pressed charges against Respondent for taking his car, and stealing his keys and phone. Respondent [REDACTED] where she was assigned at the time, and suspended from duty. [REDACTED]

The same night she was [REDACTED] suspended, March 23, Respondent made a Facebook post describing what in her viewpoint had just happened. Respondent testified that she "felt like (her) whole world was crumbling," and needed to share her experience with people she knew. In her posting (Resp. Ex. A), Respondent describes what transpired with Officer [REDACTED] who she does not identify by name. She laments that Officer [REDACTED] "[REDACTED]" which led to her suspension, even though she "was the one wronged in this situation." Respondent testified that what she posted was truthful, and she did not believe it was disparaging to the Department. (Tr. 32-33, 42)

Respondent and Officer [REDACTED] have collaborated on raising their child, and there have been no further incidents between them. (Tr. 60)

In an unrelated incident, Respondent failed to appear for scheduled tactical training at the Police Academy on February 20, 2017. Respondent testified that she was on her way to the

training when her car broke down on the Cross Bronx Expressway. She did initially call her lieutenant at Viper to alert him of the breakdown, but made no follow-up calls to alert her command or the Academy that she was detained with the mechanic longer than expected and would not be able to make it to the training. Respondent explained that her phone died, but candidly acknowledged that she should have found another way to communicate her status to someone in the Department. (Tr. 34-35, 42-43, 45-46)

The one count that Respondent is contesting is Specification 4 under Case No. 2016-15495. That specification charges Respondent with making a disparaging, inflammatory, or otherwise inappropriate Facebook post on March 23, 2016. The Advocate argues that the post, particularly its reference to her [REDACTED] suspension, was disparaging to the Department. Respondent acknowledges making the post, but argues that it was factually accurate public information, and did not constitute misconduct.

In assessing the Facebook post in this matter, this tribunal is guided by common sense standards of reasonableness.¹ It is important to keep in mind the circumstances surrounding that post. Respondent, who was seven-and-one-half months pregnant at the time, had just learned that the father of her child, to whom she had been engaged, was continuing to cheat on her, despite having recently reassured her that his involvement with the other woman was at an end. Respondent was understandably devastated by this discovery; even on the witness stand, Respondent was visibly shaken as she recounted the events of March 22. The situation became even worse when, after Respondent obtained an order of protection against Officer [REDACTED] he

¹ Specification 4 initially alleged misconduct in violation of Patrol Guide section 203-28, "Department Social Media Accounts and Policy." However, as the Court pointed out to the parties at trial, that section came into effect on April 15, 2016, several weeks after the March 23 incident date. As such, both sides agreed to orally amend the specification to be based on Patrol Guide section 203-10 (5).

responded by [REDACTED] against Respondent for stealing, which led to her [REDACTED] suspension.

This tribunal is mindful that even in difficult circumstances such as these, a member of service must be careful not to post anything inappropriate on social media. However, I find that in this particular case, Respondent's Facebook post was not unreasonable, and did not constitute misconduct. As she credibly testified, Respondent was not looking to disparage the Department. Rather, her intention was to share and vent about her painful personal experience, and her post essentially did just that. Although there is a reference in the post to her being suspended, her displeasure seems to be focused on the father of her child for the manner in which he mistreated her, and her disparaging remarks are directed toward him. When viewed in this light, the credible evidence has failed to establish that Respondent's Facebook post constituted misconduct under these circumstances. Accordingly, I find Respondent not guilty of Specification 4.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on January 9, 2006. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum. Respondent has no disciplinary record.

The Advocate asks that Respondent forfeit forty-two (42) days already served on suspension, and be placed on one-year dismissal probation. In making that recommendation, the Advocate acknowledges that none of the offenses individually justifies such a penalty, but that cumulatively a period of monitoring is warranted. Counsel for Respondent counters that the misconduct here does not justify the recommended penalty, and instead asks that Respondent's

penalty be the forfeiture of twenty-five (25) days previously served on suspension, with the remaining seventeen (17) days restored to Respondent. Taking into account the totality of circumstances presented here, including Respondent's lack of disciplinary history, I agree that the Advocate's recommendation is excessive.

Of the original six charges against Respondent, one has been dismissed, and one has resulted in a "not guilty" finding. Respondent's conduct as recounted in the remaining four counts warrants a lesser penalty than that proposed by the Advocate. In evaluating Respondent's misconduct on March 22, it is important to keep in mind the tremendous stress she experienced that day, at a time when she was seven-and-one-half months pregnant. There was no evidence that Respondent behaved violently toward Officer [REDACTED]; rather, it is alleged that she merely removed some of his property for a short period of time. Further, although Respondent did take Officer [REDACTED] car, she credibly explained that they often used each other's vehicle. She even had a copy of his car key on her key ring. Respondent admitted taking Officer [REDACTED] cell phone when she went to get food, but she was gone for just over an hour before returning to the house. Respondent also acknowledged that she did not secure her firearm as required, but explained that she felt it was safe in the nightstand since the only person present was a fellow police officer. To be sure, the measures Respondent took to secure her firearm were inadequate. But her explanation, given the circumstances, was a factor in favor of some mitigation.

The only remaining guilty count was for Respondent's failure to appear at the Academy for tactical training. Respondent explained that she failed to appear because her car broke down. She did make an initial call to her command when the breakdown occurred. However, Respondent also candidly acknowledged that she didn't make enough of an effort to communicate with the Department when it became apparent that she would not be able to make it to the training. Again, although Respondent's explanation was not sufficient to excuse her

misconduct, she did, on the witness stand, accept responsibility for her actions in a way that came across as genuine and sincere.

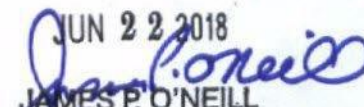
Under the totality of these circumstances, Respondent's conduct was not so egregious as to justify a penalty of dismissal probation, or even the forfeiture of forty-two (42) suspension days already served. Accordingly, I recommend that Respondent forfeit twenty (20) suspension days previously served, and that twenty-two (22) days be restored to Respondent.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

JUN 22 2018

JAMES P. O'NEILL
POLICE COMMISSIONER

APPROVED

JUN 29 2018
JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER NYDIA VERAS
TAX REGISTRY NO. 940834
DISCIPLINARY CASE NOS. 2016-15495 & 2017-17116

Respondent was appointed to the Department on January 9, 2006.

On her last three annual performance evaluations, Respondent received overall ratings of 3.0 "Competent" in 2013, 2014, and 2015.

[REDACTED]

On March 24, 2016, Respondent was suspended in connection with Disciplinary Case No. 2016-15495. On February 28, 2017, Respondent was suspended in connection with Disciplinary Case No. 2017-17116.

On June 30, 2016, Respondent was placed on Level 2 Disciplinary Monitoring based on her overall record; that monitoring remains ongoing.

Respondent has no disciplinary record.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials